

Repairs and replacements under warranty

Repairs

Generally, it is the store's responsibility to return products to the manufacturer for repair. This may include products that are under warranty.

If the store cannot arrange repairs (for example, because the manufacturer does not have the necessary parts) or cannot do so within a reasonable time, the consumer can:

- have the product fixed elsewhere and claim reasonable costs from the store that sold the product, or
- ask for a refund or replacement.

Case Study

Example only (outcome may differ in individual cases):

Several buttons came off Rohan's new shirt due to poor stitching. The tailor who made the shirt could not supply matching buttons. Rohan is entitled to ask for a replacement or refund.

Replacements

If the consumer is entitled to a replacement product, the store must provide a product that is identical, or of similar value. If this is not available, the store can choose to give a refund or repair the product within a reasonable time. Refund and repair rights apply to the replacement product in the same way as the original product.

Case Study

Example only (outcome may differ in individual cases):

Maya buys a new mobile phone. Due to a problem, the store replaces it. If there is a problem with the replacement phone, Maya can take it back to the store. She has the same rights to a refund, replacement or repair as if it were a new mobile phone.

Store responsibility

If a consumer has a valid claim for a refund, repair or replacement, the store must handle the claim.

They generally cannot insist the consumer deals directly with the manufacturer, even if the claim falls under a manufacturer's warranty.

Resolve your dispute or complaint

If you are having a dispute with the store or seller, view our [Resolve your problem or complaint section](https://www.consumer.vic.gov.au/contact-us/resolve-your-problem) (<https://www.consumer.vic.gov.au/contact-us/resolve-your-problem>).

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(<https://www.consumer.vic.gov.au/resources-and-tools/yarrka-barrng-resources-for-first-nations-people>)

We acknowledge the Traditional Owners of the lands, seas and skies. We pay our respects to their Elders past and present, and to future generations who will continue to care for Country.



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